

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, SEPTEMBER 22, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, September 22, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, September 21, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at **8:30 a.m. in Department 32**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0090373 Flores, Daniel v. MS & Sons Motor Corp.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Deposit Bond and Discharge Surety

The unopposed motion to deposit bond and to be discharged from the action by defendant/cross-complainant Defendant and Cross-Complainant American Contractors Indemnity Company (ACIC) is granted in part.

ACIC seeks to deposit with the court \$50,000 and be discharged from liability pursuant to Code of Civil Procedure section 386 et seq. The court will discharge a plaintiff stakeholder from liability who claims no interest in the res when "double or multiple claims are made, or may be made, by two or more persons." (Code Civ. Proc., § 386, subd. (b).) A surety may interplead the bond funds to minimize the surety's risk. (*Karton v. Ari Design & Construction Inc.* (2021) 61 Cal.App.5th 734, 751-54.)

ACIC presents evidence that it issued a Motor Vehicle Dealer Bond, Bond No. 100825247 for MS & Sons Motor Corporation dba Roseville City Motors, as principal pursuant to Sections 11710 and 11711 of the California Vehicle Code in the sum of

\$50,000.00 (Bond). ACIC is informed and believes the Bond was in effect at the time of the occurrence of the event described herein. Cross-defendants made adverse and conflicting demands upon ACIC for the Bond. ACIC is uncertain if additional parties may intervene as a cross-defendant later in the proceedings. As a result of these claims against the Bond, and since ACIC is uncertain as to how much to pay to each claimant or to claimants in the future who may make demand upon its bond, on April 21, 2025, ACIC filed its cross-complaint for interpleader. ACIC has no interest in the controversies between the cross-defendants and its principal, and makes this motion to sever ACIC's connection to the disputed funds, and be discharged and dismissed from the action.

The motion to deposit bond is granted.

As to attorney's fees, the court has the discretion to award reasonable attorney fees "from the amount in dispute which has been deposited with the court." (Code Civ. Proc., § 386.6, subd. (a).) ACIC must deposit the funds with the court prior to obtaining an attorney's fees award from it. (*Wells Fargo Bank v. Zinnel* (2004) 125 Cal.App.4th 393, 400–03.) A review of the court's file reveals ACIC has not yet deposited bond funds with the court. As such, the request for attorney's fees is denied without prejudice.

2. M-CV-0092493 Wells Fargo Bank NA v. Santiago, Jazz

Motion for Judgment on the Pleadings

Plaintiff's request for judicial notice is granted.

The court may grant a motion for judgment on the pleadings in favor of a plaintiff where the complaint states facts sufficient to constitute a cause of action, and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc., § 438, subd. (c)(1)(A).) The grounds for the motion must appear on the face of the challenged pleading, or be based on facts which the court may judicially notice. (*Id.* subd. (d).)

Preliminarily, while plaintiff's motion refers to a claim for breach of written contract, for breach of implied-in-fact contract, and for common counts, plaintiff's complaint in this action alleges breach of written contract and breach of implied-in-fact contract. The court will analyze this motion based on the causes of action included in plaintiff's complaint.

Here, plaintiff's complaint filed on June 18, 2025 alleges sufficient facts to support the cause of action for breach of implied-in-fact contract by showing that the parties entered into a contract, that the plaintiff performed the contract, and that the defendant breached the contract by failing to pay the plaintiff, resulting in monetary damage to the plaintiff. Defendant's answer filed on September 29, 2025 fails to deny any allegations within the complaint or raise a defense to the complaint. Further, the court granted an order deeming the truth of the matters specified in plaintiff's requests for admissions (set one) as admitted by written ruling on May 22, 2026, which supports a finding that plaintiff has alleged sufficient facts to support its cause of action. Judgment on the pleadings is appropriate in these circumstances and the motion is granted without leave to amend.

(Code Civ. Proc., § 438, subd. (c)(1)(A).) Judgment shall be entered in favor of plaintiff and against defendant in the amount of \$13,554.23 in damages together with costs of \$430.00 for a total of \$13,984.23.

3. S-CV-0049303 Nichols, Anthony J v. W1 Holdings

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Quash

Defendant Donald Hubbard, III moves to quash service of summons in this consolidated action pursuant to Code of Civil Procedure section 418.10. Plaintiffs Anthony J. Nichols and Kristen Haff oppose the motion.

Preliminarily, the court observes defendant's moving papers fail to specify exactly which proof of service of summons he is referring to and often refers to information across multiple proofs of service collectively. Despite this irregularity, the court has spent considerable time with the proofs of service in the court's file to discern defendant's arguments.

Defendant presents evidence he was never personally served in this action and contends service by substitution purported to be on his father was ineffective. Defendant argues service by substitution is ineffective as it is unsupported by evidence of diligent efforts to personally serve defendant. Defendant characterizes the attempts to serve him by delivering papers to his father at a residence in Idaho and the proofs of service to memorialize these attempts as false, misleading, and fraudulent. The court has carefully reviewed six proofs of service filed on March 23, 2026 and, accepting the evidence defendant presented differentiating himself from his father as true, does not observe any false, misleading, or fraudulent information.

The proofs of service purporting to have served defendant Hubbard and defendant W1 Holdings, LLC (not a party to this motion) at 1017 L Street, Sacramento, CA 95814 appears to show proper service pursuant to Code of Civil Procedure section 415.20(c):

[I]f the only address reasonably known for the person to be served is a private mailbox obtained through a commercial mail receiving agency, service of process may be effected on the first delivery attempt by leaving a copy of the summons and complaint with the commercial mail receiving agency

(Code Civ. Proc., § 415.20, subd. (c).) This subdivision does not require evidence of diligence to personally serve a defendant and even specifies service in this manner may be effected "on the first attempt." (*Ibid.*)

Here, the proof of service showing service pursuant to Code of Civil Procedure section 415.20(c) specifies the summons and complaint were left with “Lane Elliot, Manager of the FedEx Store on March 2, 2026, that defendant’s “physical address unknown,” that “[t]he mailbox was confirmed with the [commercial mail receiving agency] employee and served pursuant to CCP 415.20(c) and B&P 17538.5(d),” and includes a declaration of mailing showing mailing on March 3, 2026. The proof of service is signed under penalty of perjury as is the declaration of mailing. This proof of service is facially sufficient to show service was properly effected pursuant to Code of Civil Procedure section 415.20(c) and defendant presents no evidence that contradicts this. Moreover, the court observes this address is listed in the Statement of Information for W1 Holdings, LLC and the address for Mr. Hubbard as its managing member, CEO, and agent for service of process. Finally, the court observes that the address defendant uses on his motion is the same address as included on this proof of service, although it includes a “No. 485” as well.

Based on the foregoing, defendant Hubbard’s motion to quash is denied.

The court observes that after the motion to quash was filed but prior to the hearing, plaintiff requested entry of default which the court entered on June 9, 2026. As this motion to quash was pending, entry of default was incorrect as to defendant Hubbard. As to the entity defendant, the name of the defendant in the request for default (“W1 Holding, LLC”) does not match the name of the defendant in the complaint (“W1 Holdings, LLC”) and default should not have been entered against it. Accordingly, the defaults entered June 9, 2026 are hereby set aside.

Defendant Hubbard shall file and serve his responsive pleading within 10 days after service upon him of written notice of entry of the court order denying this motion. (Code Civ. Proc., § 418.10, subd. (c).)

Case Management Conference

Appearance of the parties is required on **September 22, 2026 at 9:00 a.m. in Department 32.**

4. **S-CV-0049982 Collins, David v. Hooked on Solar**

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Motion to Strike or Tax Costs

Defendants Hooked on Solar, Inc. and Ken Scriven move to strike costs in their entirety or, in the alternative, to tax costs specific costs. Plaintiff opposes the motion.

Preliminary Matters

While it is defendants Hooked on Solar, Inc. and Ken Scriven who filed this motion to strike or tax costs, as explained below, plaintiff is only the prevailing party as against Hooked on Solar, Inc. As plaintiff may not obtain an award of costs against defendant Scriven, there are no costs to tax as to this defendant and the motion is denied as to him. The court will reach the merits of the motion as to costs sought against defendant Hooked on Solar, Inc. only.

The court observes the motion to tax costs was untimely filed, as it was filed more than 15 days extended by electronic service after service of the costs memorandum. (Cal. Rules of Court, rule 3.1700(b)(1).) Plaintiff does not raise this argument in its opposition and there is no evidence the parties agreed to an extension. The court exercises its discretion to grant an extension pursuant to California Rule of Court, rule 3.1700(b)(3) so that the motion may be determined on the merits.

Ruling on the Motion

“Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032, subd. (b).) A “prevailing party” is defined to include “the party with a net monetary recovery.” (Code Civ. Proc., § 1032, subd. (a)(4).) Code of Civil Procedure section 1033.5 specifies allowable costs and prohibited costs. (Code Civ. Proc., § 1033.5, subds. (a) [allowable costs], (b) [disallowed costs].) Costs neither allowed nor disallowed “may be allowed or denied in the court’s discretion” provided they are “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “reasonable in amount.” (Code Civ. Proc., § 1033.5, subds. (c)(4), (c)(2)–(3).) “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary.” (*Ladas v. Cal. State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) “On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.” (*Id.* at pp. 774–76.) When the reasonableness of particular items is challenged, conclusory allegations do not satisfy the objecting party’s burden. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) Here, as the jury found in favor of plaintiff as against defendant Hooked on Solar, Inc. on the whistleblower retaliation

cause of action and awarded damages of \$22,500, plaintiff is the prevailing party in this action and entitled to recover costs against defendant Hooked on Solar, Inc.

Defendant first argues that because plaintiff only prevailed on one of eleven of his claims and because he recovered damages less than the jurisdictional threshold for an unlimited civil case (Code Civ. Proc., §§ 85, 88), the court should strike all costs or, in the alternative, should tax costs incurred as a result of the failed claims. The court has the discretion to do so. (Code Civ. Proc., § 1033, subd. (a); *Chavez v. City of Los Angeles* (2010) 47 Cal.4th 970, 990–91.) However, while plaintiff recovered on only one of his eleven claims, the jury award of \$22,500 is not de minimis and this case is sufficiently distinguished from *Chavez* to justify deviating from the *Chavez* court’s election to exercise its discretion to strike costs. This court declines to strike all costs or to tax costs in excess of what could have been incurred in a limited civil case. Instead, the court will review each challenged cost as to whether it is allowable and reasonable.

Filing and motion fees (\$426.16)

Defendant contends the filing fee should be limited to the filing fee for a limited civil case in light of plaintiff’s recovery. Filing and motion fees are allowable costs. (Code Civ. Proc., § 1033.5, subd. (a)(1).) These costs appear to be proper charges and the court declines to limit costs to what would have been permitted in a limited civil action. The motion to tax filing and motion fees is denied.

Deposition costs (\$11,942.85)

Defendant contends the deposition costs should be limited to the cost of one deposition as this is what would have been permitted in a limited civil case and that several depositions related to plaintiff’s failed claims and the related costs should be stricken. Defendant also contends the deposition costs relating to Summer Santiago as no deposition of such a person took place. Deposition costs are allowable costs. (Code Civ. Proc., § 1033.5, subd. (a)(3).) Plaintiff concedes costs pertaining to Summer Santiago were mistakenly included in the costs memorandum and should be stricken in the amount of \$785. Otherwise, these costs appear to be proper charges and the court declines to limit costs to what would have been permitted in a limited civil action.

Service of process (\$369.80)

Defendant contends service of process costs as to a defendant who was dismissed and a defendant against whom plaintiff was unsuccessful at trial were not necessary and should be stricken. Service of process costs are allowable costs. (Code Civ. Proc., § 1033.5, subd. (a)(4).) These costs appear to be proper charges and reasonably incurred despite the subsequent procedures pertaining to these individuals. The motion to strike is denied as to service of process costs.

Expert fees (\$17,433.22)

Expert costs are not allowable costs unless ordered by the court pursuant to Code of Civil Procedure section 1033.5(b)(1). A review of the court's file reveals plaintiff's experts were not court ordered. Plaintiff argues that Government Code section 12965(c)(6) authorizes the court to discretionarily award expert witness fees to a prevailing party in a FEHA action. While FEHA includes a retaliation claim in Government Code section 12940(h), reviewing plaintiff's complaint and the verdict form, the claim plaintiff prevailed on was brought under California's whistleblower statutes, Labor Code sections 1102.5 and 1102.6, and not under a FEHA retaliation claim under Government Code section 12940(h). These costs appear to be prohibited costs under Code of Civil Procedure section 1033.5(b)(1) are stricken in their entirety.

Court reporter fees as established by statute (\$8,000)

Defendant contends the court reporter fees are insufficiently supported. Plaintiff responds by arguing that transcripts prepared by a court reporter are only recoverable if ordered by the court pursuant to Code of Civil Procedure section 1033.5(b)(5) but that this was for the court reporter's presence in court. However, plaintiff fails to acknowledge that court reporter fees are recoverable when established by statute. (Code Civ. Proc., § 1033.5, subd. (a)(11).) Plaintiff does not cite to any statute supporting that court reporter fees are recoverable in this case. The motion to tax costs is granted in the amount of \$8,000.

Models, enlargements, and photocopies of exhibits (\$4,793.95)

"Models, the enlargements of exhibits and photocopies of exhibits, and the electronic presentation of exhibits, including costs of rental equipment and electronic formatting, may be allowed if they were reasonably helpful to aid the trier of fact." (Code Civ. Proc., § 1033.5, subd. (a)(13).) "[F]ees are not authorized for exhibits not used at trial." (*Ladas v. Cal. State Auto. Assn.* (1993) 19 Cal.App.4th 761, 775.) Defendant contends that because plaintiff only admitted 45 of the 113 exhibits he had prepared, costs should be stricken. Defendant properly objects to these costs and plaintiff falls short of showing which of these costs pertain to the 45 exhibits used at trial. As 45 of 113 trial exhibits is approximately 39% of the trial exhibits prepared, the court will tax these costs in a corresponding percentage, which means the court will tax costs in this category by \$2,924.31.

Fees for electronic filing or service (\$2,175.65)

Electronic filing and service fees are allowable costs "if a court requires or orders electronic filing or service of documents." (Code Civ. Proc., § 1033.5, subd. (a)(14).) Local Rule 10.27 requires eFiling. These costs appear proper and the motion to tax is denied as to this cost.

Other (\$2,024.36)

Counsel's lodging during trial are neither allowable nor prohibited, so they may be allowed or denied in the court's discretion. (Code Civ. Proc., § 1033.5, subd. (c)(4).)

Based on the foregoing, defendant Hooked on Solar, Inc.'s motion to strike costs in their entirety is denied and the motion to tax costs is granted in part. Costs are taxed in the amount of \$29,142.53. The motion is otherwise denied, and plaintiff is awarded costs against defendant Hooked on Solar, Inc. in the amount of \$20,695.

Motion for Attorneys' Fees

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Plaintiff moves for an award of attorneys' fees in the amount of \$238,119.75 as against defendant Hooked on Solar, Inc. pursuant to Labor Code section 1102.5(j). Defendant opposes the motion.

Preliminarily, the notice of motion is brought pursuant to Government Code section 12965(b) and 42 U.S.C. section 1988 but the memorandum of points and authorities rely on Labor Code section 1102.5(j). As plaintiff did not prevail on a FEHA claim (for the reasons described in the above ruling on defendant's motion to tax costs) and 42 U.S.C. section 1988 does not appear to apply to this case, the court understands the motion to be brought pursuant to Labor Code section 1102.5(j) and will review it accordingly.

"The court is authorized to award reasonable attorneys' fees to a plaintiff who brings a successful action for a violation of these provisions." (Lab. Code, § 1102.5, subd. (j).) A "prevailing party" is defined to include "the party with a net monetary recovery." (Code Civ. Proc., § 1032, subd. (a)(4).) Here, as the jury found in favor of plaintiff as against defendant Hooked on Solar, Inc. on the whistleblower retaliation cause of action and awarded damages of \$22,500, plaintiff is the prevailing party in this action and is entitled to seek an award of reasonable attorneys' fees against defendant Hooked on Solar, Inc. pursuant to Labor Code section 1102.5(j). Defendant argues the attorneys' fees provision was added to Labor Code section 1102.5 while this case was already pending, citing to SB 497 (Cal. Stats. 2023, ch. 526). However, subdivision (j) was added to Labor Code section 1102.5 in 2020 by way of AB 1947, chaptered as Chapter 344, and became effective on January 1, 2021. (Cal. Stats. (2019–2020 Reg. Sess.), AB 1947, ch. 344, amending Lab. Code secs. 98.7 and 1102.5.) As the instant case was filed in 2023, this attorneys' fee provision has been part of Labor Code section 1102.5 during the entire pendency of this case.

The court must next address whether the request for \$238,119.75 in attorneys' fees is reasonable. Determining the reasonable amount of attorneys' fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano*

v. Priest (Serrano III) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler, supra*, 22 Cal.4th at p. 1095.)

The court has carefully considered the declarations of counsel Lyon, Exhibits 2 and 10 through 11 thereto. The declarations of Block, Collins, O’Hair, Hiller, and Miller are not signed under penalty of perjury as required by Code of Civil Procedure section 2015.5, which defendant appropriately raises in opposition to the motion. As this evidence is not submitted in an admissible form, the court disregards the declarations of Block, Collins, O’Hair, Hiller, and Miller, the exhibits thereto, and denies these requested fees. Plaintiff presents evidence that Lyon’s hourly rate is \$750, counsel Harmeling, IV’s hourly rate is \$675, Iesha-LaShay Phillips’ hourly rate is \$375, and several legal assistants’ hourly rate is \$90. The court finds the legal assistants’ rates to be reasonable. Otherwise, the court finds a reduction in hourly rate is required in light of the cost of comparable legal services in Placer County for a case of this nature. The court finds an hourly rate of \$450 is reasonable for counsel Lyon and counsel Harmeling, IV. While plaintiff presents evidence that Iesha-LaShay Phillips is a member of the New York State Bar and is presently supervised by attorneys who are members of the California State Bar, it does not appear that this individual is Barred in the State of California or participating in the California State Bar’s Provisional Licensure Program, nor does it appear any application for *pro hac vice* has been filed or granted. Given the state of the evidence, the court limits this individual’s reasonable rate to \$90 per hour as well.

Turning next to the question of whether the number of hours expended are reasonable, the court has carefully reviewed the declaration of counsel Lyon and Exhibit 2 thereto, the declaration of counsel Harmeling IV and Exhibit A thereto, the declaration of Jacob Foster and Exhibit A thereto, the declaration of Jace Jensen Jaworek and Exhibit A thereto, the declaration of James Morrison and Exhibit A thereto, the declaration of Stuart Wilson and Exhibit A thereto, and the declaration of Iesha-LaShay Phillips and Exhibit A thereto. The court finds these documents support 170.2 hours for counsel Lyon, 9.2 hours for counsel Harmeling IV, and 326.4 legal assistant hours for Foster, Jaworek, Morrison, Wilson, and Phillips. The court observes several instances where the work is insufficiently explained, where the work appears not reasonably necessary to prosecute the action, and instances where the work appears to be duplicative. With these observations in mind, the court determines a reduction of hours is necessary and finds 163.5 hours of attorney time and 221 hours of legal assistant time, including Iesha-LaShay Phillips, to be reasonable.

Plaintiff’s request for a multiplier is denied.

Costs are awarded, following defendant’s motion to strike or tax, in the amount provided in the court’s above ruling taxing in part plaintiff’s costs.

Accordingly, plaintiff’s motion is granted in part. Plaintiff is awarded attorneys’ fees in the reduced amount of \$93,510.

5. S-CV-0053983 Gray, Bobby Dean III v. Foster, Steven

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Amended Motion for Leave to File a Fourth Amended Complaint ("4AC")

Plaintiff moves for an order granting leave to file a 4AC to add and delete various factual allegations and to add a defendant. Defendants oppose the motion.

Plaintiff filed his initial complaint on November 18, 2024 and his first amended complaint on January 6, 2025. On May 21, 2025, plaintiff filed his second amended complaint without leave of court. Defendants did not move to strike the unauthorized pleading, but demurred. On October 14, 2025, the court sustained the demurrer to the second amended complaint and afforded plaintiff leave to amend. Plaintiff filed a third amended complaint on October 13, 2025. Defendants again demurred. The court issued a tentative ruling on March 16, 2026 sustaining the demurrer without leave to amend, noting: "While Plaintiff seeks leave to amend if the Demurrer is sustained, Plaintiff fails to demonstrate in what manner the complaint can be further amended and how that amendment will change the legal effect of the pleading." (Law and motion minutes, Mar. 17, 2026.) Oral argument was not requested by either party and the tentative ruling became the court's final ruling. (*Ibid.*) Now plaintiff seeks leave to file a 4AC.

As a preliminary issue, plaintiff's moving papers did not comply with California Rules of Court rule 3.1324 because (1) plaintiff does not identify deletions and additions to the proposed amended pleading by page, paragraph, and line number as required (Cal. Rules of Court, rule 3.1324(a)(2), (3)) and (2) plaintiff's declaration does not include when the facts giving rise to the amended allegations were discovered and why the request for amendment was not made earlier as required (Cal. Rules of Court, rule 3.1324(b)(3), (4)). Plaintiff attempted to address these deficiencies by way of his reply and supplemental declaration filed August 7, 2026. The court will not rule on the motion based on these deficiencies and will instead reach the merits.

Leave to amend a pleading is generally liberally granted when doing so is in the furtherance of justice and would not prejudice the opposing party. (Code Civ. Proc., §§ 473, subd. (a)(1), 576; *Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428; *Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158.) Despite the policy of liberally allowing amendments, whether to grant or deny an amendment is nonetheless "largely within the sound discretion of the trial court" and "its exercise will not be disturbed in the absence of a showing of gross abuse." (*Jew Fun Him v. Occidental Life Ins. Co.* (1948) 88 Cal.App.2d 246, 249.) Denial is not an abuse of discretion where the complaint would not have been sufficient to state a cause of action if the proposed amendments had been allowed. (*Stiebel v. Roberts* (1941) 42 Cal.App.2d 434.)

Here, the court cannot find given the procedural posture of this case that permitting amendment would be in the furtherance of justice and would not prejudice the opposing party. These issues were previously fully litigated in the demurrer to the third amended complaint and the court clearly found that plaintiff fell short of his burden to show how the defects in the pleading could be cured. While plaintiff's supplemental declaration submitted with his reply brief includes that he received defendants' verified discovery responses on October 16, 2025, plaintiff does not explain why the newly discovered information was not part of his opposition to the demurrer to the third amended complaint (which he filed on November 17, 2025), nor does he explain why he did not request oral argument on the tentative ruling sustaining the demurrer without leave.

In substance, plaintiff's motion amounts to a motion for reconsideration pursuant to Code of Civil Procedure section 1008. A motion for reconsideration requires a showing of new or different facts, circumstances, or law along with a satisfactory explanation as to why the evidence was not presented at an earlier time. (Code Civ. Proc., § 1008; *Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.) The moving party bears the burden of showing that the information supporting reconsideration is such that the moving party could not, with reasonable diligence, have discovered or produced it earlier. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212–13.) Here, plaintiff falls short of his burden to show new or different facts, circumstances, or law that could not have reasonably been discovered and presented in his opposition to the demurrer and at oral argument at the hearing on the demurrer.

Based on the foregoing, the motion for leave to amend is denied.

Defendants may file an application for dismissal pursuant to Code of Civil Procedure section 581(f)(1).

6. S-CV-0054052 Morrill, Rowenna v. City of Rocklin

Motion to be relieved as counsel

Counsel for Plaintiff Rowenna Morrill moves to be relieved as counsel. No response to this motion has been filed.

There is no evidence in the court's file of service of the motion filed August 26, 2026 on the plaintiff. Based on the failure to demonstrate proper and timely service on the plaintiff, the motion is denied without prejudice.

7. **S-CV-0054772 Deutsche Bank v. New Century Mortgage**

This tentative ruling is issued by the **Honorable Angus Saint-Evens**. If oral argument is requested, it will be heard on **September 28, 2026 at 8:30 a.m. in Department 32**.

Motion to Discharge Receiver and for Exoneration of Surety

The court has reviewed court-appointed receiver Richardson Griswold's motion for discharge of receiver and exoneration of surety and the declaration and exhibit attached thereto. No opposition or objections have been filed.

The motion is granted as prayed. The receiver's report is hereby approved, and all activities of the receiver in connection with his appointment as described therein are hereby confirmed and approved. The bond is exonerated. The receiver is discharged and the receivership appointment is terminated. The court retains jurisdiction over any matters or claims that later may arise in connection with the receiver.

8. **S-CV-0055052 Alvarado, Giovanni Perales v. Kniesels Collision**

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Approval of PAGA Settlement

Plaintiff moves for approval of the parties' PAGA settlement. No opposition has been filed. The court observes two procedural issues that must be addressed prior to reaching the merits of the motion.

First, the motion is supported by insufficient notice. All moving papers and supporting papers shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Notice is extended by 2 court days when service is by electronic means, as it was here. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) Here, the motion was filed and served without affording the additional 2 court days for electronic service.

Second, plaintiff submits evidence the PAGA notice was sent to the LWDA on February 7, 2025 and that an amended PAGA notice letter was sent to the LWDA on August 13, 2026. Labor Code section 2699.3(a)(2)(A) requires the Department to act within 60 calendar days of a PAGA notice or the time to act lapses within 65 calendar days. Here, that time period has not yet lapsed from the date of the amended notice. Accordingly, this motion is brought prematurely.

In light of the above issues, the court on its own motion continues this motion to **November 3, 2026 at 8:30 a.m. in Department 32**. Plaintiff is directed to file and serve a notice of continued hearing by October 2, 2026. Plaintiff is also directed to file and serve a supplemental declaration indicating whether the LWDA has given any indication it intends to investigate the alleged violations by October 23, 2026.

Case Management Conference

The case management conference is likewise continued to **November 3, 2026 at 8:30 a.m. in Department 32.**

9. S-CV-0055413 Manikas, John v. Ryan, Donald

The demurrer to the first amended cross-complaint is continued to be heard by the **Honorable Michael W. Jones on November 19, 2026 at 8:30 a.m. in Department 3.** Department 3 is located at 101 Maple Street, Auburn, California 95603.

10. S-CV-0055963 Routon, Mariha Rayanne v. Lyon dba Taco Bell

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Approval of PAGA Settlement

The unopposed motion is granted. The court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Lab. Code § 2699, subd. (l); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*O'Connor, supra*, 201 F.Supp.3d at p. 1120.) The court has carefully reviewed and considered the PAGA settlement and plaintiff's moving papers filed in connection with the motion. The court determines a sufficient showing has been made that the settlement is fair, reasonable, genuine, meaningful, and consistent with the purpose of PAGA. The court approves the PAGA settlement, approves ILYM Group, Inc. as settlement administrator and approves their fees of \$4,950, awards plaintiff's counsel attorneys' fees of \$36,207.50 and litigation costs of \$5,674.59, approves \$10,000 as a service award payment to plaintiff, and incorporates by reference the findings and others outlined in the proposed order submitted in conjunction with this motion.

The court schedules a final accounting hearing on **February 9, 2027 at 8:30 a.m. in Department 32.** Plaintiff shall submit a final accounting report no later than January 22, 2027. **The court also vacates the case management conference scheduled for October 6, 2026.**

11. S-CV-0057073 Foulk, Steven R v. LoanDepot.com

The motion to set aside entry of default is dropped from calendar as no moving papers were filed with the court.

12. S-CV-0057603 The Travelers Indemnity Co. v. Smith, James

Defendant's motion to compel arbitration and motion to stay is continued to **October 6, 2026 at 8:30 a.m. in Department 32.**

13. S-CV-0057622 Cynthia L Anderson v. Hanna, Pamela K

Defendant's Demurrer to Complaint

Defendant's request for judicial notice is granted.

Defendant demurs to the plaintiff's complaint in its entirety.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Fourth, Sixth and Seventh Causes of Action

Plaintiff concedes the fourth cause of action for conversion, sixth cause of action for constructive trust, and seventh cause of action for civil conspiracy are not adequately pleaded. The demurrer is sustained as to the fourth and seventh causes of action with leave to amend. As to the sixth cause of action for constructive trust, leave to amend is denied as constructive trust is a remedy and not a cause of action.

*First Cause of Action
(Financial Elder Abuse)*

Defendant demurs to the first cause of action for financial elder abuse based on the failure to allege sufficient facts to constitute a valid cause of action.

To state a claim for financial elder abuse, plaintiff must allege facts showing that defendant took, secreted, appropriated, obtained, or retained property of an elder for a wrongful use, with intent to defraud, or by undue influence. (Welfare and Institutions Code section 15610.30.) Here, plaintiff adequately alleges standing as a successor-in-interest. (Welf. & Inst. Code § 15657.3(d); *Lickter v. Lickter* (2010) 189 Cal.App.4th 712, 732.) However, the complaint fails to allege facts showing defendant took, secreted, appropriated, obtained, or retained property of plaintiff's mother. Instead, plaintiff alleges defendant orchestrated trust amendments which harmed plaintiff.

As to the first cause of action for financial elder abuse, the demurrer is sustained with leave to amend.

*Second Cause of Action
(Breach of Fiduciary Duty)*

Defendant demurs to the second cause of action for breach of fiduciary duty based on lack of standing and failure to allege sufficient facts to constitute a valid cause of action. The complaint alleges defendant was in a fiduciary relationship with plaintiff's mother, and breached her fiduciary duties to plaintiff's mother, ultimately causing harm to plaintiff. The opposition argues there are two theories of breach of fiduciary duty, which plaintiff intends to plead as successor-in-interest, and in her individual capacity. The second cause of action does not allege defendant and plaintiff were in a confidential or fiduciary relationship and at best appears to conflate these two theories.

As to the second cause of action for breach of fiduciary duty, the demurrer is sustained with leave to amend.

*Third Cause of Action
(Constructive Fraud)*

Defendant demurs to plaintiff's third cause of action for constructive fraud.

To state a claim for constructive fraud plaintiff must show (1) a fiduciary relationship, (2) nondisclosure, (3) intent to deceive, and (4) reliance and resulting injury. (Civ. Code, § 1573; *Stokes v. Henson* (1990) 217 Cal.App.3d 187, 197.) Constructive fraud must be pled with specificity. (*Schauer v. Mandarin Gems of Cal., Inc.* (2005) 125 Cal.App.4th 949, 960-61; *Tindell v. Murphy* (2018) 22 Cal.App.5th 1239, 1249-50.) Here, the complaint fails to allege all requisite elements with specificity.

As to the third cause of action for constructive fraud, the demurrer is sustained with leave to amend.

*Fifth Cause of Action
(Unjust Enrichment)*

Defendant demurs to plaintiff's fifth cause of action for unjust enrichment on the grounds it is not an independent cause of action under California law absent an underlying basis for restitution.

"Unjust enrichment is 'a general principle, underlying various legal doctrines and remedies,' rather than a remedy itself. (*Dinosaur Development, Inc. v. White* (1989) 216 Cal.App.3d 1310, 1315.) It is synonymous with restitution. (*Id.* at p. 1314; *see also Melchior v. New Line Productions, Inc.* (2003) 106 Cal.App.4th 779, 793.) The elements of an unjust enrichment or restitution claim are receipt of a benefit and unjust retention of

the benefit at the expense of another (*Professional Tax Appeal v. Kennedy-Wilson Holdings, Inc.* (2018) 29 Cal.App.5th 230, 238.) Based on the court's review of the complaint as a whole, it adequately alleges facts to support a claim for unjust enrichment or restitution.

As to the fifth cause of action for unjust enrichment, the demurrer is overruled. In summary, the demurrer is overruled as to the fifth cause of action. The demurrer is sustained with leave to amend as to the first, second, third, fourth, and seventh causes of action. The demurrer is sustained as to the sixth cause of action without leave to amend.

Any amended complaint shall be filed and served on or before **October 2, 2026**.

14. S-CV-0058242 In re the Petition of Ray, Robyn

Petition for Approval of Compromise of Claim of Proceeds of Judgment for Minor

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)
